

HOUSE No. 2670

The Commonwealth of Massachusetts

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a peace officer oath.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 2670

By Representative Montañó of Boston, a petition (accompanied by bill, House, No. 2670) of Samantha Montañó relative to establishing a peace officer oath. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a peace officer oath.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6E of the Massachusetts General Laws, as appearing in the most recent edition,
2 is hereby amended by inserting a new section 13, Section 13A the following:-

3 SECTION 1: Section 13A: Ethical Oath for Peace Officers

4 Section 13A. (a) In alignment with the mission of the Massachusetts Peace Officer
5 Standards and Training Commission established in Section 2 of Chapter 6E. Public confidence
6 and improved policing standards shall be enhanced by requiring an ethical oath for peace officers
7 including the head of an agency, a special state police officer appointed pursuant to sections 58
8 and 63 of Chapter 22C and special sheriff's deputy sheriffs appointed pursuant to sections 3 and
9 4 of chapter 37, constables executing an arrest for any reason, or any other special, reserve, or
10 intermittent peace officer.

11 (b) Peace officers certified under this chapter shall swear or affirm an ethical oath
12 inspired by principles of beneficence, non-maleficence, and accountability to the public they

13 serve. This oath shall be administered upon certification and recertification, reinforcing a
14 commitment to public service, ethical conduct, and adherence to constitutional principles.

15 (c) The ethical oath shall include the following pledges:

16 (i) To prioritize the protection and well-being of all individuals in the community,
17 upholding the principle of “first, do no harm”;

18 (ii) To employ de-escalation techniques and use force only when absolutely necessary,
19 ensuring proportionality and respect for human life;

20 (iii) To uphold and protect civil liberties and constitutional rights without discrimination
21 based on race, ethnicity, religion, gender, or socioeconomic status;

22 (iv) To provide or call for emergency medical services for any person with whom they
23 are in contact or have under their custody or control, who they have participated in the causation
24 of or who is experiencing an emergent medical condition;

25 (iv) To serve with integrity, transparency, and accountability, acknowledging the public
26 trust placed in peace officers;

27 (v) To maintain professional competence through ongoing education and training, with a
28 focus on ethical decision-making and community engagement; and

29 (vi) To actively report and address misconduct within the profession, fostering a culture
30 of accountability and trust.

31 (d) The Massachusetts Peace Officer Standards and Training Commission is directed to
32 develop the specific language of the oath and ensure its consistent administration. The
33 Commission shall consult with community stakeholders, legal experts, and law enforcement
34 professionals to create a text that reflects the highest standards of ethical conduct and
35 public service.

36 (e) The ethical oath shall be included as a mandatory component of officer training
37 programs, professional evaluations, and certification processes. Noncompliance with the oath
38 shall be grounds for review and potential disciplinary action by the Massachusetts Peace Officer
39 Standards and Training Commission.

40 (f) The Massachusetts Peace Officer Standards and Training Commission in connection
41 with the Executive Office of Public Safety shall report annually to the Governor and the
42 Legislature on the implementation and effectiveness of the ethical oath in promoting professional
43 standards and public trust in law enforcement.

44 SECTION 2. This act shall take effect 90 days after its passage to allow for the
45 development and adoption of the ethical oath by the Massachusetts Peace Officer Standards and
46 Training Commission.